Website as a Service Agreement

Webstar Business Services LLC

Plain-language subscription contract. **Not legal advice.** Have a Michigan attorney review for your LLC before relying on this.

Fill every blank / `{PLACEHOLDER}` before sending. Master terms: SERVICE-AGREEMENT-MASTER.md · Care Plan terms incorporated: CARE-PLAN-AGREEMENT.md · Hosting runbook (internal): HOSTING-STANDARD.md

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Plan fill-in

Field	Fill in
Effective date	`{EFFECTIVE_DATE}` _____
Client legal name	`{CLIENT_LEGAL_NAME}` _____
Client contact (name · email · phone)	`{CLIENT_CONTACT}` _____
Monthly fee	**$150 per month** (Stripe autopay)
Minimum term	**6 months** from the first payment date
First payment date	`{START_DATE}` _____ (build starts on receipt)
Billing day	_____ of each month
Website scope tier (check one)	☐ Simple (3 pages) ☐ Business (5–10 pages, booking, brand kit) ☐ Growth (per attached estimate)
Page list / features locked at signing	_____
Booking tool / integration (if any)	_____
Domain (registered in Client's name)	_____ registrar: _____
Google account for Business Profile / Analytics	_____
Estimated launch	`{LAUNCH_DATE}` _____ (Simple ≈ 1 week · Business ≈ 2 weeks · Growth per estimate, after complete intake)

Project summary: `{PROJECT_SUMMARY}`

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1. Parties

This Website as a Service Agreement ("Agreement") is entered into as of `{EFFECTIVE_DATE}` between **Webstar Business Services LLC** ("Webstar," "we," "us"), Metro Detroit & surrounding Michigan communities · 248-564-3663 · ian@webstarbusinessservices.com, and **`{CLIENT_LEGAL_NAME}`** ("Client," "you"), contact `{CLIENT_CONTACT}`.

2. What is included

For the monthly fee, Webstar provides:

1. **Website build** at the scope tier checked above, fixed in writing at signing (pages, features, booking path, brand kit if Business tier). Deliverables match the corresponding one-time package.

2. **Google services:** Google Business Profile create or claim and full setup; Google Analytics 4 with call/form click tracking; Google Search Console and sitemap submission; accounts owned by Client's Google account.

3. **Hosting** on Webstar's managed server for the life of this Agreement, with SSL, daily backups (30-day retention), uptime monitoring, and PHP/security updates.

4. **Standard Care Plan** benefits: 60 minutes of content edits per month, a monthly plain-English Analytics/Search Console report, a Google Business Profile check and refresh, and same-business-day priority support. Unused minutes do not roll over.

5. **Launch and 30-day warranty** as in Master §8.

Not included: domain registration fees (Client registers and pays for the domain in Client's own name — Webstar helps set it up); third-party subscriptions (booking software, stock photos, email marketing); printing; paid ads; new features or pages beyond the locked scope (change order or upgrade to Premium Care); guaranteed rankings or reviews.

3. Fees, billing, and minimum term

- **$150 per month**, charged automatically by **Stripe** on the billing day. The **first payment** starts the build; subsequent payments continue monthly whether or not the site has launched, because build work is being performed.
- **Minimum term: 6 consecutive monthly payments.** After the sixth payment the Agreement continues **month-to-month** until cancelled under §6.
- **Late / failed payment:** Stripe retries automatically. If payment is more than 15 days late, a 1.5% monthly late fee may apply and Webstar may suspend the site (a "temporarily unavailable" page) until the account is current. Repeated failure (30+ days) is a material breach.
- Price changes after the minimum term require **60 days' written notice** and never apply inside the minimum term.

4. Ownership

- **Domain:** registered in Client's name from day one. Client owns it unconditionally.

- **Google properties:** owned by Client's Google account from day one.
- **Website files and design:** owned by Webstar during the minimum term. **On receipt of the sixth monthly payment, ownership of the final website files and design transfers to Client** (subject to third-party licenses and Webstar's retained tools/frameworks, which Client receives a perpetual license to use as delivered). Content Client supplies is always Client's.
- Webstar may showcase the work unless Client objects in writing before launch.

5. Scope changes

The scope locked at signing is what the monthly fee covers. Additional pages, features, or integrations are handled by a written change order (one-time fee), by moving to a larger scope tier with an adjusted monthly fee agreed in writing, or within the included edit minutes where practical. Email approval is sufficient.

6. Cancellation and what happens to the site

After the minimum term, either party may cancel with **30 days' written notice** (email is fine). On cancellation Client chooses:

- **Keep going month-to-month** (no action needed), or
- **Switch to a Care Plan** at the then-current Care Plan rate, or
- **Take the files:** Webstar delivers a complete export of the site (files, database if any, and instructions) within 10 business days and helps repoint DNS. Hosting on Webstar's server ends at the end of the notice period.

Before the minimum term ends, Client may cancel only by paying the **remaining minimum-term payments** in one invoice; ownership of the files then transfers and the export above is provided. Webstar may cancel early only for Client's uncured material breach (§9), in which case Client has 10 days to pay the remaining minimum-term payments to receive the files; otherwise the site is taken down after 30 days.

Client's domain and Google properties are unaffected by any cancellation.

7. Client responsibilities

Timely assets and approvals (3 business days), accurate business information, a Google account for the business, completion of Google verification steps, content Client has the right to use, and keeping the payment method current.

8. Service levels

Target uptime 99.5% monthly excluding scheduled maintenance announced in advance. Defects reported during the warranty window are addressed within 2 business days; Standard Care support requests receive a same-business-day response and are completed in order received. Webstar's remedy for missed service levels is a pro-rated credit of the monthly fee for the affected days, on request.

9. Shared terms

Master §3 (client responsibilities), §6 (revisions and change orders), §8 (warranty), §9 (confidentiality and security), §10 (accessibility), §11 (liability and indemnification, with liability capped at fees paid in the

preceding six months), §12 (termination for breach), §13 (force majeure and assignment), §14 (Michigan law, Oakland County venue, good-faith negotiation), and §15 (entire agreement) apply to this Agreement as if set out here.

Acceptance

Provider — Webstar Business Services LLC

Name: Ian McDonnell · Title: Owner

Signature: _____ Date: _____

Client — `{CLIENT_LEGAL_NAME}`

Name: _____ Title: _____

Signature: _____ Date: _____
